

# STATE OF NEW YORK

8429--A

2025-2026 Regular Sessions

## IN SENATE

June 10, 2025

Introduced by Sens. FAHY, SUTTON -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- recommitted to the Committee on Disabilities in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee and committed to the Committee on Finance -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the mental hygiene law, in relation to holders of certain operating certificates authorized to provide behavioral analysis services, or to employ or contract with applied behavior analysts and mental health counselors

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 16.03 of the mental hygiene law is amended by  
2 adding a new subdivision (h) to read as follows:

3 (h) Any provider of services that holds an operating certificate  
4 pursuant to subdivision (a) of this section shall be authorized to  
5 provide behavioral analysis services, in accordance with article one  
6 hundred sixty-seven of the education law and with persons licensed to  
7 provide mental health counseling pursuant to section eighty-four hundred  
8 two of the education law, so long as the professional providing such  
9 services is acting within their lawful scope of practice. Additionally,  
10 any such provider that holds an operating certificate pursuant to subdivi-  
11 vision (a) of this section shall also be authorized to employ or  
12 contract with persons licensed or certified to practice applied behavior  
13 analysis pursuant to article one hundred sixty-seven of the education  
14 law and with persons licensed to provide mental health counseling pursu-  
15 ant to section eighty-four hundred two of the education law.

16 § 2. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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